



CHAPTER iii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the London and North Eastern Railway.

[19th December 1946.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.
2. This Act may be cited as the London and North Eastern Railway Order Confirmation Act 1946.

Confirmation
of Order in
schedule.

Short title.

SCHEDULE.

LONDON AND NORTH EASTERN RAILWAY.

Provisional Order to make provision for the abandonment by the London and North Eastern Railway Company of the Burntisland and Granton Ferry and for other purposes.

WHEREAS by the Act 5 and 6 Vict. cap. xci intituled "An Act for constructing a Low Water Pier and necessary Works at Burntisland in the County of Fife and establishing a Ferry between the same and Granton in the County of Edinburgh and for improving the Communication between the said Pier and Kinghorn" a ferry between Burntisland and Granton across the Firth of Forth (in this Order referred to as "the ferry") was authorised to be established:

10 & 11 Vict.
c. cxcii.
14 & 15 Vict.
c. lv.
24 & 25 Vict.
c. ccxiv.
25 & 26 Vict.
c. clxxxix.

And whereas in pursuance of the Edinburgh and Northern Railway (Burntisland Pier and Ferry) Act 1847 the Edinburgh Perth and Dundee Railway (Consolidation) Act 1851 the Edinburgh Perth and Dundee Railway Act 1861 and the North British Edinburgh Perth and Dundee and West of Fife Railways Amalgamation Act 1862 the powers in relation to the ferry were vested in the North British Railway Company:

11 & 12 Geo. 5.
c. 55.

And whereas in pursuance of the Railways Act 1921 the undertaking of the North British Railway Company now forms part of the undertaking of the London and North Eastern Railway Company (in this Order referred to as "the Company"):

And whereas between the years 1931 and 1939 the volume of traffic carried by the ferry diminished and the ferry was operated at a considerable and increasing loss:

And whereas in consequence of the outbreak of war and the exercise of emergency powers by the Admiralty in the year 1940 the ferry was and still is discontinued:

And whereas it is expedient to make provision for the abandonment of the ferry:

26 Geo. 5. &
1 Edw. 8. c. 52.

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title.

1. This Order may be cited for all purposes as the London and North Eastern Railway Order 1946.

Abandonment
of ferry.

2. Subject to the provisions of this Order the Company may abandon and discontinue the working of the ferry across the Firth of Forth between Burntisland in the county of Fife and Granton in the city of Edinburgh and the Company are hereby relieved from all or any obligation (statutory or otherwise) to maintain the ferry and the piers quays wharfs approaches buildings and works connected therewith.

3.—(i) Where any work connected with the ferry and situated wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister of Transport may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situated below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as he may think proper. Abatement of work abandoned or decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situated above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister of Transport may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when notice is served upon the Company they have failed to comply with such notice the Minister of Transport may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable accordingly.

4. Nothing contained in this Order shall repeal alter diminish or affect the rights powers and privileges vested in Granton Harbour Limited with respect to the pier and harbour of Granton as authorised by the Granton Harbour Acts 1837 to 1919 (hereinafter in this section referred to as the "harbour company" and "Granton Harbour" respectively) and secured by or arising under the said Acts the Crown charters narrated in the said Acts and the agreement between the Edinburgh and Northern Railway Company and the Duke of Buccleuch dated fifteenth and twenty-seventh January and registered in the books of council and session twenty-third February eighteen hundred and forty-seven and notwithstanding anything contained in this Order on the abandonment of the ferry under the provisions of this Order the slip quay and works connected therewith constructed by the said railway company in pursuance of the said agreement shall in accordance with and as provided by the said agreement form part of and be used treated and considered in all respects the same as any of the other slips quays or other landing places at Granton Harbour. For protection of Granton Harbour Limited.

5. All costs charges and expenses of and incident to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Company. Costs of Order.

Ch. iii.

London and North Eastern 10 & 11 GEO. 6.
Railway Order Confirmation Act, 1946.

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